



File No.: EXP202407405

RESOLUTION OF

PROCEDURE OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 5, 2024, the Spanish Agency for Data Protection became aware of certain facts that could constitute possible infringements attributable to A.A.A. with NIF ***NIF.1 (hereinafter, the respondent). The facts brought to the attention of this authority are:

The complainant states that they are a neighbor of the property of the respondent in a building located at ***ADDRESS.1. The building consists of two residences distributed over two floors.

The ground floor residence is owned by the complainant, and the first-floor residence is owned by the respondent and their spouse. The respondent has installed an alarm system with a surveillance camera in the landing of the first floor, next to the entrance door to their home, without authorization or consent from the complainant and, consequently, without agreement from the homeowners' association. It is noted that the surveillance system lacks the required informative sign and is oriented towards common areas or elements.

Furthermore, it is stated that the camera was initially installed by the complainant in another common area, the lobby of the ground floor, and that, following a judicial procedure, it was removed from its initial location and installed in the current place.

Additionally, it is claimed that the complainant has requested the right of access to the images captured by the camera, via burofax, on two occasions, without receiving a response.

Along with the complaint, the following is provided:

- A photograph showing the location of the camera in the landing of the first floor, next to the entrance door of the respondent's home, oriented towards the staircase.
- A video showing the location of the surveillance camera, as well as that the alarm system incorporated activates as soon as the complainant accesses the previous landing of the first-floor staircase.
- A lawsuit against the respondent, in which, among other matters, the installation of an alarm system with a video camera by the respondent is reported; response to the lawsuit; order dated September 25, 2023, recognizing the partial admission of the now-respondent regarding the removal of the camera from the lobby of the ground floor, where it was initially located; enforcement lawsuit; and enforcement order dated February 16, 2024.
- Simple note of property registration located on the first floor of ***ADDRESS.1 identifying the respondent as the owner of 50% of it and B.B.B. as the owner of the other 50%.
- Minutes of the Extraordinary General Meeting of the homeowners' association of the building at ***ADDRESS.1 held on March 12, 2021, which includes a request for the removal of the camera.
- Burofax sent by the complainant to the respondent and their spouse dated November 2, 2023, exercising the right of access to the images captured by the surveillance camera. In it, the model of the camera is identified, with photographs, as (...). A description of the device according to the website of this entity is included, stating "detects motion in indoor areas and takes a sequence of photos that are sent to our Alarm Receiving Center, where we verify the activation. With ***APPLICATION.1 you can request photos of what happens in your installation at any time."

In the aforementioned request for the right of access, exercised in accordance with Article 15 of the GDPR, the respondent was identified as the data controller, and it was requested "that the right of access be provided free of charge by that controller within one month from the receipt of the request and that the following information be sent to the address indicated above:

- o Copy of my personal data that is subject to processing by that controller.
- o The purposes of the processing, as well as the categories of personal data being processed.
- o The recipients or categories of recipients to whom my personal data have been communicated, or will be communicated, including, where applicable, recipients in third parties or international

organizations.

- o Information on the appropriate safeguards relating to the transfer of my data to a third country or to an international organization, where applicable.
- o The expected retention period, or if not possible, the criteria for determining this period.
- o If there are automated decisions, including profiling, significant information about the logic involved, as well as the significance and expected consequences of such processing.
- o If my personal data has not been obtained directly from me, the available information about its origin.
- o The existence of the right to request the rectification, deletion, or limitation of the processing of my personal data, or to object to such processing.
- o The right to lodge a complaint with a supervisory authority."

- Burofax of 4 pages of response dated November 17, 2023, sent by the spouse of the respondent to the complainant in which they state:

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"Regarding the burofax submitted on November 2, 2023, and received on November 9. Your attitude, in which you always assert supposed rights but are never willing to fulfill your obligations, requires us to make a series of clarifications."

Next, it is acknowledged, among other things: that the camera is installed at the entrance of your home for security reasons; that it was previously installed in the lobby at the entrance of the residence, on the ground floor; that the claiming party, as the owner of the ground-floor apartments, does not need to go to the lobby where the camera is located or to the staircase leading to the first floor, "therefore it is indifferent to them if a stranger enters those premises." Furthermore, the claiming party is requested to assume certain maintenance costs for the common areas; it is indicated that "they cannot exercise their right to build and overbuild on the roof of the building without our knowledge. Therefore, we do not understand the reasons why they went up to our landing, given the conflicting relationships that exist." The only reference to the exercised right of access is contained in a paragraph that is reproduced below:

"They are exercising a claim that we cannot currently address, as we lack the technical means to do so. However, they have all the guarantees from ***COMPANY.1, and if they wish, we can put them in contact with that company, so they can exercise the rights that correspond to them."

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Burofax dated December 21, 2023, by which the claiming party reiterates the request for the right of access made in the burofax of November 2, 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this claim was forwarded to the claimed party on May 21, 2024, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the transfer of the claim, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on May 29, 2024, as stated in the acknowledgment of receipt in the file.

No response was received to this transfer letter.

THIRD: On August 5, 2024, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claiming party was admitted for processing.

FOURTH: On December 20, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the claimed party for the alleged infringements of Articles 5.1 c), 13, and 15 of the GDPR, classified respectively in Articles 83.5.a), 83.5.b), and 83.5.b) of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), occurred on January 14, 2025, as stated

in the acknowledgment of receipt in the file.

SIXTH: On January 21, 2025, a written statement of allegations was received from the claimed party in which, in summary, the following considerations are made:

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In the first of the allegations, titled "On the Ownership of the Property," the claimed party asserts that the claiming party is not a neighbor of the property located at ***ADDRESS.1. They claim that "the property at ***ADDRESS.1, (...) is leased as a residence to a third party. (...) The complainant is the owner (neither neighbor nor tenant) (...)."

Next, they make a series of clarifications regarding the property and the chronology by which the claiming party acquired the aforementioned property along with an alleged right of overbuilding and explanations about the existing conflict between the parties. In summary, they state:

(...) "The entire property at ***ADDRESS.1, (...) previously belonged to the ***C.C.C. family (...).

(...) In the lobby of the door leading to the first floor of ***ADDRESS.1, the utility meter rooms are installed (...).

(...) The previous owners sold the current complainant a right of overbuilding on the property at ***ADDRESS.1, allowing them to build a second floor. To do this, they established a community of property owners affecting the lobby and staircase of the property located at ***ADDRESS.1, (...) since the property at ***ADDRESS.1, (...) does not have direct access to the utility meter room located in that lobby (...).

(...) The right they sold has expired due to the passage of 30 years; nevertheless, they intended to build affecting their project on my property and without obtaining the necessary consent from me and my wife. From this simple fact, all the problems arise. This individual knows (...) and continuously sends burofaxes, filing lawsuits, complaints with any authority, and even submitted a preliminary project for overbuilding to the urban planning body of ***TOWN HALL.1 (...) (...).

(...) Until recently, at the end of December 2024 (...) they sent a burofax to take charge of the expenses proposing a formula with conditions that are not acceptable."

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In their second allegation, titled "On the Alarm System," they state:

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"(...) Regarding the alarm system, as previously indicated in our writings, we are unaware of how the regulations regarding the installation of alarm systems function, and our actions have always adhered to the principles of good faith. Therefore, we provide the latest review conducted as ATTACHED DOCUMENT NUMBER FOUR.

a) (...), we have opted to dispense with the services of ***COMPANY.1. Proceeding with the uninstallation of the alarm, although (...). This way, I also avoid periodic expenses and the constant complications with the complainant.

(...) Regarding the alarm system, we will provide a synopsis of what occurred:

o Initially, the alarm system was installed in the lobby to ensure security for the parties, as on more than one occasion, my relative found the door open upon accessing the property. The only ones who had the key are the interested parties. At the request of the current complainant during the Community of Property Owners meeting on March 12, 2021, the alarm was moved to the landing of the first floor, and a mechanism was left in the lobby to turn off the alarm in case it was triggered for any reason. I must emphasize that the complainant, since they cannot build above, has no reason to access the landing of the first floor. And if they wished to access the roof of the property, the only way to do so is through my home. Attached are photos of the device to disconnect the alarm, which was in the entrance of the lobby and was placed at the request of the complainant so they could disconnect it when it was triggered; the camera placed on the landing of the first floor and how the wall looks after its removal, as ATTACHED DOCUMENTS NUMBERS FIVE, SIX, AND SEVEN.

o Regarding the alleged images, the complainant has been informed that they could contact

***COMPANY.1 and request them. However, when we inquired with the mentioned company about the recordings, they indicated that since we have not made a series of installations in our home, the recordings only occur when accessing the residence and are comfort images (event recordings) that in our case were stored exclusively by the security company; we could not freely access these images unless they were sent to us by ***COMPANY.1.

o Specifically, the installed security system is a motion detector, not a surveillance camera, and it does not record 24 hours a day; rather, when the alarm is activated, upon detecting unauthorized movement or activity, the sensor takes a burst of images that are sent to the alarm receiving center of

***COMPANY.1. These images are deleted within a maximum period of 30 days, unless they need to be provided to qualified third parties (police, courts, etc.) for criminal offenses.

o In the first fact, third paragraph, in fine, it is again untrue to say that the installed camera lacks the required informational sign. A photograph of the sign placed at the entrance of the building's façade is attached as ATTACHED DOCUMENT NUMBER EIGHT.

o In the first fact, fourth paragraph, it is again untrue. The removal of the surveillance camera from the lobby was carried out giving

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compliance with the act of the Community of Owners dated March 12, 2021, not due to the filing of your lawsuit. Attached is my response to the lawsuit (...) in the Court (...).

o

Regarding the lawsuit, the complainant requested the removal of the surveillance camera from the lobby, not from the first floor, a fact that had already been carried out prior to the filing of the lawsuit.

But the question is: to what extent could they demand the removal of the alarm installed on the landing of the first floor? When in their own lawsuit, the aforementioned one referred to in the Court (...) in their request asks that it be declared in point 3 (...) verbatim “the illegality of the installation of the alarm system installed in the lobby of the community” (...)

o

Another issue is whether the complainant intends or intended for there to be no camera to carry out activities contrary to law.

o

Regarding the various burofaxes issued by the complainant, there are so many of them, for the most diverse reasons and multitude of matters to examine that it becomes very difficult for this party to delimit the requests that may have some legal significance, from those that are simple matters of no importance.”

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Finally, it concludes: “We reiterate that we have removed the alarm due to a problem (...), but above all due to the fatigue caused by the constant conflicts with this neighbor.”

Along with their written allegations, they present:

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First page of a lawsuit filed by the claiming party in which it is indicated that their address is ***ADDRESS.1.

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First page of a power of attorney for litigation dated November 2021 in which it is stated that the address of the claiming party is ***ADDRESS.1.

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Registration information with reference ***REFERENCE.1 issued by the Property Registry of ***LOCALITY.1 on August 29, 2022.

-

Project for the extension of a dwelling in a multi-family building prepared by an architect.

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Undated photograph of a switch located at the entrance door of a dwelling.

-

Photograph of the alarm that includes a camera located on the exterior part of a door leading to a dwelling.

-

Photograph showing the space where the camera was previously located, without it being present.

-

Photograph of the exterior entrance to a property showing an informational sign that states "Guard. Immediate intervention 24h. ***COMPANY.1".

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Service report (extension/revision) dated January 16, 2025, from ***COMPANY.1 addressed to the defendant, which includes among others, the following aspects:

"Installation data: A.A.A..

(...)

Customer number: (...)

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(...)

Address: ***ADDRESS.1

(...)

Date: 16/01/2025

(...)

Summary of the extended services. Elements and Services. Advanced protection: Access Detectors.

Quantity: 1.

(...)

Description of the works:

o

Relocation of elements: (...). Quantity: 1.

o

Relocation of elements: (...).

o

Replacement of elements: (...).

o

Replacement of element: (...).

o

Replacement of element: (...).

o

Extension: (...). Quantity: 1. Unit price: 139.00 euros.

o

Replacement of element: (...). Quantity: 2. Unit price: 20.50 euros.

(...)

Observations:

I relocate the photo from the stairs to the bedroom and the key reader due to LOPD. I replace the black key. I change batteries for everything. Complete review ok. I extend pack 2 shock sensor at a cost of 139 euros plus VAT and increase monthly fee by 2 euros plus VAT."

(...)

Elements of the system, installed devices, and brand:

o

Brand: (...)

o

Alarm model: (...)

o

Security level: (...)

o

Type of device:

Photo-volumetric detector. (...). Number of devices: 3

Magnetic detector. (...). Number of devices: 1

SIGFOX inhibition detector. (...). Number of devices: 1

Key reader. (...). Number of devices: 1

Interior/exterior siren. (...). Number of devices: 1

(...)

Additional observations and recommendations:

I relocate the photo from the stairs to the bedroom and the key reader due to LOPD. I replace the black key. I change batteries for everything. Complete review ok. I extend pack 2 shock sensor at a cost of 139 euros plus VAT and increase monthly fee by 2 euros plus VAT.”

At the end of the document, the signature of the technician and the signature of the client appear.

In view of all that has been acted upon, by the Spanish Agency for the Protection of Data in the present procedure, the following facts are considered proven,

PROVEN FACTS

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FIRST: Until January 16, 2025, the lobby on the first floor of ***ADDRESS.1 has a surveillance system with image capture located in a common area and oriented towards common elements, without any agreement from the community of property owners.

SECOND: The surveillance system consists of an alarm with a motion detector from the brand (...), whose sensor takes a burst of images when it detects movement, which are sent to the alarm receiving center of ***COMPANY.1.

THIRD: The surveillance system with image capture does not have an informational sign mentioning the data controller, nor the possibility to exercise the rights provided for in Articles 15 to 22 of the GDPR.

FOURTH: The data controller is A.A.A. with NIF ***NIF.1, the party being claimed against.

FIFTH: On November 2, 2023, the claiming party exercised their right of access before A.A.A. under the terms provided by Article 15 of the GDPR through a burofax.

SIXTH: On November 17, in response to the burofax from the claiming party, A.A.A. confirmed the image capture but did not provide the right of access, stating that the surveillance system has the guarantees of the installing company, with whom the claiming party can contact to exercise their corresponding rights.

SEVENTH: On December 21, 2023, the claiming party reiterated their request for the right of access, without receiving a response.

EIGHTH: On January 21, 2025, along with the allegations regarding the initiation agreement and, therefore, during the processing of this warning procedure, A.A.A. certifies the removal of the surveillance system from the common areas on January 16, 2025, and its relocation inside the home of the party being claimed against.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of

Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

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Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Considering the nature of the facts that have led to these proceedings and the concurrent circumstances, this warning procedure is being conducted in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure will have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

Response to the Allegations

First, it is necessary to address the allegations made by the party being claimed against following the notification of the initiation agreement.

Regarding the first allegation, the party being claimed against specifies that the claiming party is the owner of the property where the surveillance system with image capture is located, but that this is not their residence. In this regard, it is important to note that, according to Article 77 of the GDPR, “any interested party (...) has the right to lodge a complaint with a supervisory authority if they consider that the processing of personal data concerning them infringes this Regulation.”

Moreover, video surveillance systems or systems with image capture involve the processing of personal data to the extent that the image of a person is considered such, as it corresponds to the definition provided in Article 4.1 of the GDPR, which defines it as “any information relating to an identified or identifiable natural person.” Thus, whether the claiming party is an owner, neighbor, or visitor of the property is not significant from the perspective of data protection, as long as the personal data concerning them is affected by processing.

On the other hand, the party being claimed against acknowledges, both in the first allegation and throughout their written submission, that the property located at ***ADDRESS.1 has been established as a community of property owners in accordance with Law 49/1960, of July 21, on Horizontal Property. The installation of a video surveillance system or a system with image capture in common areas requires prior agreement from the community of property owners, as derived from Articles 6 and 17.3 of the aforementioned law. The community of property owners in this case is composed of the claiming party and the party being claimed against, as owners of the dwellings that make up the property.

Regarding the other considerations made by the party being claimed against in their first allegation, it should be indicated that it is not within the purview of this Agency to pronounce or resolve issues that exceed the scope of personal data protection.

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and that they must be resolved, if applicable, before the competent administrative or judicial bodies. Regarding the second allegation, titled “On the alarm system,” the responding party states, first of all,

that it is unaware of the regulations concerning the installation of personal data of alarm systems and that its actions have always been in good faith. In this regard, it is noted that, as indicated by the Civil Code in its article 6, "ignorance of the laws does not excuse compliance." Therefore, in light of the nature of the facts that have led to the proceedings and the concurrent circumstances, and in the exercise of the competencies of this Agency, the present warning procedure has been initiated, as provided in article 64.3 of the LOPDGDD.

It asserts that it has chosen to dispense with the services of ***COMPANY.1. However, among the documentation attached, there is a review report from this company dated January 16, 2025, signed by the responding party, which contradicts this assertion. According to the mentioned report, a complete review of the surveillance system was carried out, the photosensor and the key reader were relocated from the staircase to the bedroom to comply with the LOPDGDD, and in addition, the "pack 2 shock sensor was expanded at a cost of 139 euros plus VAT and an increase in the monthly fee of 2 euros plus VAT." From the above, it does not follow that the existing contract with the installation company has been resolved; rather, within the framework of this contract, the relocation of the photodetector has taken place, which has now been positioned inside the home of the responding party, instead of in the common area of the property where it was previously located.

The responding party confirms that, in response to the access rights requests made by the complaining party, it referred them to the installation company of the surveillance system with image capture since the images were "stored exclusively by the security company" and that it could not access these images "freely," unless "they were sent to us by ***COMPANY.1."

In response to these assertions, it is noted that article 4.7 of the GDPR defines "data controller" or 'controller': the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing; (...)"

In the present case, according to the provisions of articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the responding party carries out, among other processes, the collection and storage of personal data and is the one who determines the purposes and means of that processing.

In this regard, the Guidelines 7/2020 of the European Data Protection Board (EDPB) on the concepts of "data controller" and "data processor" in the GDPR state:

"20. (...) The data controller is the one who decides on certain essential aspects of the data processing. The responsibility for processing can be established in the regulations or inferred from an analysis of the facts or circumstances of the case. It is necessary to focus on the specific processing activities in question and to understand who determines them. For this,

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First, the following questions must be examined: "Why is the treatment taking place?" and "Who has decided that the treatment should be carried out for a specific purpose?" (underlined by the AEPD). Therefore, in this case, the respondent is responsible for the treatment, and the hiring of an external video surveillance service or the installation of cameras by a third party does not exempt it from compliance with data protection legislation. In this case, ***EMPRESA.1 acts as the data processor according to the definition provided by Article 4.8 of the GDPR.

Thus, among the obligations of the data controller is to address requests for the right of access, as provided for in Article 15 of the GDPR, in the terms established by Article 12.3 of the GDPR.

In this regard, the respondent's claims that the difficulty in addressing the various burofaxes sent by the complainant are not deemed sufficient to justify non-compliance with the provisions of the Regulation. Articles 12.4 and 12.5 of the GDPR establish the circumstances under which the controller may refuse to address a request, yet it is still mandatory to send an appropriate communication to the data subject. These aspects are also developed in Article 12 of the LOPDGDD.

Regarding the claim that the established system is not a video surveillance system since it only activates upon detecting movement, it is specified that, as noted by the respondent itself, the system in

place consists of capturing images through a photo detector. This means that the system captures images (bursts of photographs) upon detecting movement, thus also processing personal data that is subject, consequently, to the same rules as a video surveillance system that records 24 hours.

Concerning the assertion that there was an informational sign, it is indicated that, in accordance with Articles 13 of the GDPR and 22 of the LOPD GDD, the sign indicating a video surveillance area must inform about the existence of the treatment (video surveillance); the identity of the data controller or the video surveillance system; the possibility of exercising the rights recognized in Articles 15 to 22 of the GDPR; and where to obtain more information about the processing of personal data, at a minimum. According to the photograph provided by the respondent, the informational sign of its image capture surveillance system only contains the following information: "Guard. Immediate intervention 24h. ***EMPRESA.1." Consequently, it is established that the informational device does not comply with the requirements established by current regulations as it does not specify the identity of the data controller, the possibility of exercising the rights recognized in Articles 15 to 22, or the place to go for more information about the processing of personal data.

Finally, the respondent concludes in its written allegations that "we reiterate that we have removed the alarm due to a problem (...), but above all due to the fatigue caused by the constant conflicts with this neighbor." In this regard, the previously mentioned contradiction between the statement made and the situation is reiterated.

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the supporting documentation provided. That is to say, according to the documentation submitted, the claiming party has proceeded to remove the camera and relocate it within their home, but has not dispensed with the services of the installing entity.

In any case, it is worth noting that it is not until January 21, 2025, that the responding party proves the removal of the camera. Furthermore, this relocation or removal occurs, according to the documentation provided, on January 16, 2025, that is, after the opening of the present warning procedure and after the notification of the initiation agreement made on January 14, 2025.

Consequently, the facts that motivated the opening of the warning procedure have taken place, and the infringement has occurred, even though the adoption of corrective measures for these aspects is not applicable as they have already been adopted by the data controller.

IV

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction."

Images captured by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

The responding party carries out the processing of personal data in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

It is therefore pertinent to analyze whether the processing of personal data carried out through the surveillance system of the responding party is in accordance with the provisions of the GDPR.

V

Data protection regulations

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through systems of cameras or video cameras with the aim of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible area or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. If the monitored space has several entrances, such a distinguishing mark of the monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out.

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In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the data minimization principle in the context of video surveillance means that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

The capture of images in common areas or elements of property owner communities requires the agreement of the owners' meeting in the terms provided for in Law 49/1960, of July 21, on horizontal property (hereinafter LPH).

Once this requirement is met, the community of owners, as the data controller, will be subject to the remaining obligations imposed by data protection regulations. The cameras may only capture the common areas of the community, and recording images of public roads is not feasible, except for a minimal strip of the access points to the property. It will also not be permissible to capture images of adjacent land and homes or any other external space. In this latter case, if orientable cameras and/or those with zoom are used, the installation of privacy masks will be necessary to prevent such recording.

As indicated in response to the allegations, hiring an external video surveillance service or installing the cameras by a third party does not exempt the community from compliance with data protection

legislation.

VI

Obligations regarding video surveillance

Furthermore, the processing of images through a video surveillance system, to comply with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, a "layered information" system is provided in relation to video surveillance.

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The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The controller must maintain a record of activities of the processing carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood to be the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set out in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Data Protection Agency offers access through its website [<https://www.aepd.es>] to:

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- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

In this case, the respondent acknowledges having a surveillance system installed in a common area. The system captures images of common elements (in particular, the staircase leading to the floor where their residence is located, as well as the lobby on the first floor), through a photodetector that, when it detects movement from third parties (whether neighbors, owners, or visitors to the building), takes bursts of photographs.

All of this constitutes excessive collection of personal data, insofar as the camera is not directed towards the entrance door of the respondent's residence, but rather towards the common areas of the property.

On the other hand, according to the image provided by the respondent on January 21, 2025, the informational sign regarding image capture does not comply with the requirements set forth by current regulations. In this regard, it does not inform about the identity of the data controller or the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, violating the provisions of Article 13 of the GDPR regarding the duty to provide information to data subjects at the time their data is obtained, which, in relation to video surveillance, Article 22 of the LOPDGDD provides for through a "layered information" system.

On January 21, 2025, the respondent certifies, through a review report from the service installation company, that on January 16, 2025, the surveillance system in the common area where it was located has been removed, as well as its relocation inside their residence. However, the removal of the photodetector occurred after this warning procedure was initiated and following the notification of the initiation agreement on January 14, 2025.

Consequently, it can be determined that the violations have taken place, even though corrective measures for these aspects are not warranted.

VII

Rights of individuals regarding personal data protection

On the other hand, the claimant has exercised their right of access regarding the images captured by the respondent's video surveillance system.

In this regard, it is worth noting that the rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding the fulfillment of the duty to respond to the request for the exercise of rights

made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

VIII

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs disproportionate costs, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the

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possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available regarding the origin of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not negatively affect the rights and freedoms of others. The aforementioned rules do not allow for the request to be disregarded as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data of the data subject in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question should not be considered.

In the case analyzed here, there is a request for the exercise of the right of access, as well as a reiteration of this, without the response provided to the complaining party on November 17, 2023, being able to be considered, according to its literalness, the mandatory communication provided for in Article 12.3 in relation to Article 15 of the GDPR.

In that communication, the data controller, that is, the party being complained against, first refers to the "alleged rights" of the complaining party and omits its obligations as a controller by redirecting the complaining party to the camera installation company to exercise "the rights that correspond to them." Furthermore, there is no response to the reiteration of the request for the right of access made on December 21, 2023.

In its response to allegations dated January 21, 2025, the party being complained against, regarding the requests for the right of access made by the complaining party, only confirms that the complaining party has been informed that they can contact ***COMPANY.1. It also states that they would only have access to the images if they were sent to them by the aforementioned company. Additionally, it states

that "(...) Regarding the various burofaxes issued by the complainant, there are so many of them, for the most diverse reasons and a multitude of matters to examine, that it is difficult for this party to delineate the requests that may have certain legal significance from those that are mere trivial matters (...)"

From the above, it is concluded that the requests for the right of access from the complaining party have not been addressed or denied in a reasoned manner by the data controller in the terms required by current regulations.

IX

Classification and qualification of the infringements

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In light of the above and in accordance with the available evidence, it is considered that the party being complained against has committed the following infringements of the current data protection regulations:

- Infringement of the data minimization principle provided for in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."
- Infringement of the information duties regarding data provided for in Article 13 of the GDPR, in accordance with the provisions of Article 22 of the LOPDGDD.
- Infringement of the duty to attend to the exercise of the right of access established in Article 15 of the GDPR.

Article 83.5 of the GDPR states that "infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations for infringements, the three infringements attributed prescribe after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

"1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

- a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679 (...)
- b) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law (...)
- k) The obstruction or hindrance or repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 (...)

X

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

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"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)"

In the present case, given the circumstances involved, it is considered that a warning should be issued for each of the infringements of the articles violated.

XI

Corrective Measures

Having confirmed the infringements, it may be agreed to impose on the controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 of the GDPR, according to which each supervisory authority may:

c)

"order the controller or the processor to respond to requests for the exercise of the rights of the data subject under this Regulation";

In the present case, the controller is required to notify this Agency within one month of the adoption of the following measures:

- Certify that they have sent the complainant a certificate addressing the requested right or that the request has been duly denied, indicating the reasons why the request cannot be fulfilled, in accordance with the provisions set forth in the body of this resolution.

It is warned that failure to comply with the orders for the adoption of measures imposed by this agency in this resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1:

- For the infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

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- For the infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

- For the infringement of Article 15 of the GDPR, classified under Article 83.5.b) of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to certify that they have proceeded to send the complainant a certificate addressing the requested right or that the request has been duly denied, indicating the reasons why the request cannot be fulfilled, in accordance with the provisions set forth in the body of this resolution.

THIRD: TO NOTIFY this resolution to A.A.A., with NIF ***NIF.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

1403-16012024

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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